

ALITO, J., dissenting

not polled or those for which the jury *was* unanimous.” *Id.*, at 14.

Unimpressed by these potential consequences, the majority notes that we “vacated and remanded nearly 800 decisions” for resentencing after *United States v. Booker*, 543 U.S. 220 (2005), held that the Federal Sentencing Guidelines are not mandatory. *Ante*, at 108. But the burden of resentencing cannot be compared with the burden of retrying cases. And while resentencing was possible in all the cases affected by *Booker*, there is no guarantee that all the cases affected by today’s ruling can be retried. In some cases, key witnesses may not be available, and it remains to be seen whether the criminal justice systems of Oregon and Louisiana have the resources to handle the volume of cases in which convictions will be reversed.

These cases on direct review are only the beginning. Prisoners whose direct appeals have ended will argue that today’s decision allows them to challenge their convictions on collateral review, and if those claims succeed, the courts of Louisiana and Oregon are almost sure to be overwhelmed.

The majority’s response to this possibility is evasive. It begins by hinting that today’s decision will not apply on collateral review under the framework adopted in *Teague v. Lane*, 489 U.S. 288, 315 (1989) (plurality opinion). Under *Teague*, “an old rule applies both on direct and collateral review,” but if today’s decision constitutes a new procedural rule, prisoners will be able to rely on it in a collateral proceeding only if it is what we have termed a “watershed rule” that implicates “the fundamental fairness and accuracy of the criminal proceeding.” *Whorton v. Bockting*, 549 U.S. 406, 416 (2007). Noting that we have never found a new rule of criminal procedure to qualify as “watershed,” the Court hints that the decision in this case is likely to meet the same fate.

But having feinted in this direction, the Court quickly changes course and says that the application of today’s deci-